

KARC200009992020



Presented on : 30-07-2020
Registered on : 03-08-2020
Decided on : 01-06-2024
Duration: 03 yrs, 10 months, 02 days

IN THE COURT OF THE SENIOR CIVIL JUDGE & J.M.F.C.,
DEVADURGA

Present:
Sri.Hanumanth Satwik.,LL.M,

Senior Civil Judge & JMFC, Devadurga.

O.S.No.39/2020

DATED : THIS THE 1st DAY OF JUNE 2024.

Plaintiff: Gangappa S/o. Late.Basappa Harijan,
Age: 70 years, Occ: Agriculture,
R/o.Ramadurga village, Tq:Devadurga,
Dist: Raichur.

(By Sri.R.K., Advocate)

--V/s--

Defendants:1. Hanumantha S/o. Late. Chandappa,
Age: 57 years, Occ: Agriculture,
R/o. Ramadurga village, Tq:Devadurga,
Dist: Raichur.

2. Basavaraj S/o. Late. Chandappa,
Age: 53 years, Occ: Agriculture,
R/o. Ramadurga village, Tq:Devadurga,
Dist: Raichur.



3. Smt.Basalingamma W/o. Late Bheemappa,
Age: 41 years, Occ: Household,
R/o. Ramadurga village, Tq:Devadurga,
Dist: Raichur.
4. Sabayya S/o. Late.Chandappa,
Age: 46 years, Occ: Private Job,
R/o. Ramadurga village, Tq:Devadurga,
Dist: Raichur. Now at R/o. Near Bharmasale,
Logo Road Airport Road Pune,
Tq: & Dist:Pune, Maharastra State.
5. Yallappa S/o. Late. Chandappa,
Age: 39 years, Occ: Agriculture,
R/o. Ramadurga village, Tq:Devadurga,
Dist: Raichur.
6. Sangayya S/o. Karibasappa,
Age: 52 years, Occ: Agriculture,
R/o. Ramadurga village, Tq:Devadurga,
Dist: Raichur.

(D.2 to 5 Ex-parte)
(D.1 and 6 by Sri.V.D.C., advocate)

JUDGMENT

The present suit is for declaration ownership, permanent injunction and for rectification of RORs.

2. It is the case of the plaintiff that he and one Huligeppa are the children of Basayya @ Basappa S/o. Hanuma @ Hanumappa. His father died long ago. The land bearing Sy.No.35/3-1 totally measuring 11 acres 31 guntas is a single land. However in the revenue records it has been wrongly split-



up into two stripes each measuring 07 acres 17 guntas and 04 acres 08 guntas. As per the revenue records, the land measuring 07 acres 17 guntas is standing in his name and the land measuring 04 acres 08 guntas is standing in the name of the father of defendant no.1, 2, 4 and 5 by name Chandappa S/o. Hanuamappa. His father was the owner and possessor of land bearing Sy.No.35/3 totally measuring 20 acres 11 guntas. After the death of his father the records of the said property were mutated in the joint names of himself and his elder brother Huligeppa. The said Huligeppa died before marriage. As such, he became the sole owner and possessor of the above said property. Thereafter, he sold portion of the said property in favour of Lingamma W/o. Bheemappa. Thus, he continued to be the owner and possessor of the remaining land measuring 11 acres 31 guntas, which includes the suit property. In the month of September 2019, he came to know that the defendants are intending to sell the suit property. In this regard, he made enquiry with the revenue officials. He came to know that the father of defendant no.1 colluding with the revenue officials got entered his name in the ROR's of the suit property. The defendants have no right, title or possession over the suit property. In spite of it, the defendants are attempting to interfere in his possession over the suit property. In this regard, the plaintiff prayed as above.

3. Defendant no.1 filed the written statement. Defendant



no.6 adopted the written statement of defendant no.1. Defendant no.1 in his written statement denied the plaint averments. The defendant contended that the father of plaintiff and the father of defendants are brothers in relation. The father of plaintiff and the father defendants are the sons of deceased Hanuamppa. On 16.07.1985, the plaintiff himself got mutated the records of the suit property in the name of Chandappa. Since then Chandappa became the owner and possessor of the suit property. After the death of Chandappa, they continued to be the owners and possessors of the suit property. The records of the suit property originally stood in the name of their grand father by name Hanumappa Begar. After the death of Hanuamppa, the records of the suit property were jointly mutated in the names of plaintiff and Huligeppa. The plaintiff is not in possession of the suit property. As the father of plaintiff and the grand father of defendants are brothers in relation, their family has share in the land bearing Sy.No.35/3-1. As such, the revenue officials got mutated the records of the suit property in the name of Chandappa as per law. The father of defendants is the uncle of the plaintiff, therefore the records of the suit property were mutated in his name. The plaintiff has no rights over the suit property. In this regard, defendant no.1 prayed to dismiss the suit.

4. Considering the pleadings and the documents on record following issues were framed:



ISSUES

1. Whether plaintiff proves his absolute ownership over the suit schedule property?
2. Whether the plaintiff proves his possession over the suit schedule property?
3. Whether the plaintiff proves that the alleged interference caused by the defendants?
4. Whether the plaintiff entitle for relief of rectification of revenue records as sought for in the suit?
5. Whether the plaintiff is entitle for the reliefs as sought for in the suit?
6. What order or decree?

5. Plaintiff in support of his case got examined himself as PW.1 and got further examined PW.2 and 3 and got marked Ex.P.1 to 9 and closed his side. Defendant no.1 and 6 in support of their case got examined defendant no.1 as DW1 and got further examined DW.2 to 4 and got marked Ex.D.1 to 33 and closed his side.

6. Heard arguments of learned counsel for the plaintiff and defendant no.1 and 6.



7. My findings for the above issues are as under;

- Issue No.1 : In the affirmative
 - Issue No.2 : In the affirmative
 - Issue No.3 : In the affirmative
 - Issue No.4 : In the negative
 - Issue No.5 : In the partly affirmative
 - Issue No.6 : As per final order
- For the following;

R E A S O N S

8. **Issue no.1:-** It is the case of the plaintiff that he and one Huligeppa are the children of Basayya @ Basappa S/o. Hanuma @ Hanumappa. His father was the owner of land bearing Sy.No.35/3 measuring 20 acres 11 guntas. After the death of his father the records of the said property were mutated jointly in his name and in the name of his brother Huligeppa. The said Huligeppa died before marriage. Thus, he became the sole owner of land bearing Sy.No.35/3 measuring 20 acres 11 guntas. He sold portion of the said land in favour of one Lingamma W/o. Bheemappa. He is cultivating the remaining land measuring 11 acres 31 guntas, which includes the suit property. The said property is a single land, however in the revenue records it has been wrongly split-up into two stripes each measuring 07 acres 17 guntas and 04 acres 08 guntas. He is the owner of the suit property. In this regard, PW.1 to 3 in



their respective affidavits filed in lieu of examination-in-chief supported the plaint averments.

9. Having said this, defendant no.1 in his written statement admitted that on 16.07.1985 the plaintiff himself got mutated the records of the suit property. Since then his father became the owner of the suit property. This admission of defendant no.1 indicates that the plaintiff was the owner of the suit property at an undisputed point of time.

10. Further, defendant no.1 in his written statement stated that the suit property stood in the name of Hanumappa Begar, who is his grand father and the father of plaintiff. After the death of Hanumappa, the records of the suit property were mutated in the names of plaintiff and his brother Huligeppa. These written statement averments go to show that the records of the suit property stood in the name of plaintiff and Huligeppa at an undisputed point of time. In this background, DW.1 in his cross-examination admitted that the plaintiff and Huligeppa are brothers. Huligeppa died before marriage. The plaintiff is the only successor to the estate of Huligeppa. Thus seen, on analyzing the aforesaid cross-examination averments of DW.1 and the written statement averments it is further limpid that after the death of Huligeppa, his share in the suit property devolved on the plaintiff and the plaintiff became the sole owner of the suit property. Viewed from all these angles, it



can be deduced that the plaintiff became the owner of the suit property subsequent to the death of Huligeppa.

11. Thus, in view of the above observations it is ostentatious that the plaintiff was the owner of the suit property at an undisputed point of time. In this background, there are no materials on record which indicate that the plaintiff himself got mutated the records of the suit property in the name of Chandappa. So also, nothing is forthcoming in Ex.D.11 to show that plaintiff voluntarily got mutated the records of the suit property in the name of Chandappa. This being the case, I am of the view that defendant no.1 failed to establish that plaintiff himself got mutated the records of the suit property in the name of Chandappa.

12. Defendant no.1 further contended that his father and the father of the plaintiff are brothers in relation. As such, the records of the suit property were rightly mutated by the revenue officials in the name of Chandappa. Be it stated, DW.1 in his cross-examination stated that he did not write in his written statement stating that the father of plaintiff and father of defendants are brothers in relation. This averment of DW.1 indicate that his father and the father of plaintiff are not brothers. This being the case, I am of the view that the contention of defendant no.1 that his father and the father of plaintiff are brothers does not hold good.



13. Further, the learned counsel for defendant no.1 in the arguments referred to Ex.D.11 to contend that the plaintiff himself got mutated the records of the suit property in the name of Chandappa. As such, Chandappa was the owner of the suit property. Be it stated, it is settled principle of law that the mutation entries do not confer any right, title or interest in favour of the person with respect to the property. In this regard, I am supported by the decision of Hon'ble Supreme Court of India between Jitendra Singh V/s. State of Madhya Pradesh and Ors., cited in 2011 SCC OnLine SC 802, wherein the Hon'ble court held thus;

“Be that as it may, as per the settled proposition of law, mutation entry does not confer any right, title or interest in favour of the person and the mutation entry in the revenue record is only for the fiscal purpose”.

In view of the law laid down by the Hon'ble Apex Court, I am of the view that the aforesaid arguments of the learned counsel merit rejection.

14. The learned counsel for defendant no.1 referring to the cross-examination averments of PW.1 argued that the plaintiff is residing at Ramadurga since birth and he had never been to Bangalore as alleged in the plaint. Be it stated, whether or not



the plaintiff had been to Bangalore or lived in Ramadurga, it makes no difference to decide on the issue of ownership of the plaintiff over the suit property. This being the case, I am of the view that this argument of the learned counsel has no bearing on the case of the plaintiff.

15. Thus, in the case at hand, for the aforesaid reasons it is clear that the plaintiff was the owner of the suit property at an undisputed point of time. Further, it is held that defendant no.1 failed to prove that the plaintiff himself got mutated the records of the suit property in the name of Chandappa. So also, Ex.D.11 being a mutation entry, does not confer title on Chandappa with respect to the suit property. Therefore, on the strength of Ex.D.11 no title with respect to the suit property transferred in favour of Chandappa, the father of defendant no.1. Consequently, Chandappa cannot be said to be the owner of the suit property on the touchstone of Ex.D.11. Resultantly, no title with respect to the suit property passed on to the defendants after the death of Chandappa. In these circumstances, plaintiff who is the owner of the suit property at an undisputed point of time remained to be the owner of the suit property. In this view of the matter, considering the evidence adduced and the documents produced, I am of the view that the plaintiff proved that he is the owner of the suit property. Accordingly, I answer issue no.1 in the affirmative.

16. **Issue No.2:** It is the case of the plaintiff that he is in



possession of the suit property. In this regard, PW.1 to 3 their respective affidavits filed in lieu of examination-in-chief supported the plaint averments. Be it noted, DW.1 in his cross-examination stated that they interfered in the suit property while plaintiff was doing cultivation in the suit property. DW.1 stated thus;

“ವಾದಿ ದಾವಾ ಆಸ್ತಿಯಲ್ಲಿ ಸಾಗುವಳಿ ಮಾಡುತ್ತಿರುವಾಗ ನಾವು ಹೋಗಿ ಹಸ್ತಕ್ಷೇಪ ಮಾಡಿದ್ದೇವು ಎಂದರೆ ನಿಜ. ಆಗ ವಾದಿ ಯಾವ ಕಾರಣಕ್ಕಾಗಿ ಹಸ್ತಕ್ಷೇಪ ಮಾಡುತ್ತಿರುವುದಾಗಿ ನಮ್ಮನ್ನು ಕೇಳಿದ್ದರು ಎಂದರೆ ನಿಜ”.

These averments of DW.1 reflect that the plaintiff is in possession of the suit property as on the date of the institution of the suit. In this view of the matter, considering the evidence adduced and the documents produced, I am of the view that the plaintiff proved that he is in possession of the suit property as on the date of the institution of the suit. Resultantly, issue no.2 is answered in the affirmative.

17. Issue No.3: It is the case of the plaintiff that the defendants are attempting to interfere in his possession over the suit property. In this regard, I have perused the written statement of defendant no.1 and the tenor of cross-examination of PW.1 to 3 by the counsel for defendant no.1 and 6. Be it noted, the written statement version of defendant no.1 and the tenor of cross-examination of PW.1 to 3 by the



counsel for defendant no.1 and 6, indicate that the defendants are attempting to interfere in the possession of the plaintiff over the suit property. So also, DW.1 in his cross-examination admitted that they interfered in the possession of the plaintiff over the suit property. In these circumstances, considering the evidence on record, I am of the view that the plaintiff proved the alleged interference by the defendants with respect to his possession over the suit property. Consequently, I answer issue no.3 in the affirmative.

18. Issue No.4 and 5:- For the sake of convenience and to avoid repetition of facts these issues are taken together for common discussion. In the case at hand the plaintiff proved that he is the owner of the suit property. The plaintiff further proved that he is in possession of the suit property as on the date of the institution of the suit and the alleged interference by the defendants. In these circumstances, I am of the view that the plaintiff is entitled for the reliefs of declaration of ownership and permanent injunction.

19. Further, the plaintiff sought for rectification of RoRs of the suit property. Be it stated, this court cannot grant the relief of rectification of revenue records as sought for. In this regard, I am supported by the decision of Hon'ble High Court of Karnataka between Shakuntala W/O. Basavraj Hosakeri vs Andaneppa S/O. Shivappa Hosakeri (RFA No.100178/2021), wherein Hon'ble Court held thus;



“2. Chapter XI of the Karnataka Land Revenue Act, 1964 which deals with the record of rights, provides for the mechanism to make entries or challenge the same by conferring appellate/ revisional jurisdiction on the revenue authorities under Section 136 of the Act. Therefore, if any entry RFA No. 100178 of 2021 is wrong according to the plaintiff, they have to prefer appeal or revision. As per the proviso to Section 135 of the Act, only option is to seek the declaration of their title and on getting decree for declaration of title, approach the revenue authorities for change of the entries in accordance with such decree.

13. The plaintiffs filing suit for declaration of revenue entries against the private person without impleading the State Government or revenue officer is virtually an indirect attempt to defeat Section 135 of the Karnataka Land Revenue Act, 1964. The proviso to Section 135 of the Karnataka Land Revenue Act, 1964 provides for filing the suit for declaration



of his right and not the declaration with regard to nullity of the entries. Permitting such prayer amounts to allowing omission of the entries indirectly. That defeats Section 135 of the Karnataka Land Revenue Act, 1964.”

In view of the law laid down by the Hon’ble court the plaintiff is not entitled for the relief of rectification of RORs of the suit property as sought for. Consequently, issue no.4 is answered in the negative and issue no.5 is answered in the partly affirmative.

20. **Issue No.6:-** In view of reasons on issue No.1 to 5 and in the interest of Justice and equity, I proceed to pass the following,

O R D E R

Suit of the plaintiff is hereby partly decreed with cost.

The plaintiff is hereby declared as the owner of the suit property. Further, the defendants are hereby permanently restrained from interfering in the possession of the plaintiff over the suit property.

Draw decree accordingly.



(Dictated to the stenographer transcribed, computerized and printout taken by him, corrected and then pronounced by me in the open court on this the 1st day of June, 2024).

(Sri.Hanumanth Satwik)
Senior Civil Judge and JMFC,
Devadurga.

A N N E X U R E S

1. List of witness examined on behalf of plaintiff:
P.W-1: Gangappa S/o. Basayya @ Bassappa.
P.W-2: Nagappa S/o. Lachamanna.
P.W-3: Hanumanth S/o Basappa
2. List of documents marked on behalf of plaintiff:
Ex.P-1 to 3 : Records of Rights.
Ex.P.4 to 6 : Mutations.
Ex.P-7 : RRT Appeal No.182/2019.
Ex.P-8 : RRT Appeal
Ex.P-9 : List of Documents.
3. List of witness examined on behalf of defendant no.1 and 6:
D.W-1 : Hanumanth S/o. Late. Chandappa.
D.W-2 : Khajayya S/o. Ramanna.
D.W-3: Abdul Gani Sab S/o. Jingale Sab.
D.W-4 : Maheboob Ali S/o. Chandasab.



4. List of documents marked on behalf of defendant no.1 and 6:

- | | | |
|---------------|---|-------------------|
| Ex.D.1 | : | Khasra Pahani. |
| Ex.D.2 to 9 | : | Record of Rights. |
| Ex.D.10 to 13 | : | Mutations. |
| Ex.D.14 to 33 | : | Record of Rights. |

(Sri.Hanumanth Satwik)
Senior Civil Judge and JMFC,
Devadurga.